

OK as to Availability of Funds:


JAYSON V. ANTONIO
Accountant III
Chief, Finance Section

Contract ID : 24BG0272
Contract Name : ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macañao Creek, Phase I,
Contract Location : Barangay Luzon, Cabatuan, Isabela



Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
ISABELA 3RD DISTRICT ENGINEERING OFFICE
Tagaran, Cauayan City, Isabela, Region II



FORM OF CONTRACT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **CONTRACT AGREEMENT**, made this 14th day of February, 2025, by and between:

The **GOVERNMENT OF THE REPUBLIC OF THE PHILIPPINES** through the **Department of Public Works and Highways (DPWH)** represented herein by **ADONIS A. ASIS**, District Engineer, duly authorized for this purpose, with main office address at **DPWH-Isabela 3rd District Engineering Office, Tagaran, Cauayan City, Isabela**, hereinafter referred to as the **"PROCURING ENTITY"**;

-and-

JWU CONSTRUCTION AND SUPPLY, a sole proprietorship duly organized and existing under and by virtue of laws of the Republic of the Philippines, with principal address at **Purok #4, Rizal, Roxas, Isabela**, represented herein by **JOHN WINSTON D. UY**, duly authorized for this purpose, hereinafter referred to as the **"CONTRACTOR;"**

WITNESSETH:

WHEREAS, the **PROCURING ENTITY** is desirous that the **CONTRACTOR** execute the Works under **24BG0272 - ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macañao Creek, Phase I, Barangay Luzon, Cabatuan, Isabela** hereinafter called "the Works," and the **PROCURING ENTITY** has accepted the Calculated Bid of the **CONTRACTOR** for the execution and completion of the Works at the calculated unit bid prices shown in the attached Bill of Quantities, or a total Contract price of **Ninety Six Million Four Hundred Eighty Nine Thousand Nine Hundred Eighty Three and 4/100 Pesos (P96,489,983.04)**;

WHEREAS, the **PROJECT** comprised in this Contract shall be completed within **Three Hundred Twenty One (321) calendar days** in accordance with the provisions of the Bidding Documents;

WHEREAS, under Republic Act 11936 (GAA FY2023) the implementation of the project is covered by the **Cash Budgeting System** as required under **Executive Order No. 91**, dated September 09, 2019;

WITNESSES:


ELIGIO T. MATIAS
Engineer III
Chief, Construction Section

CONTRACTOR:

JOHN WINSTON D. UY
General Manager

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
BY:


ADONIS A. ASIS
District Engineer

CONTRACTOR:

WNESSES:

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ADONIS A. ASIS
District Engineer III
District Engineer

JOHN WINSTON D. UY
Engineer III
General Manager


ELIGIO T. MATIAS
Engineer III
Chief, Construction Section


JAYSON V. ANTONIO
Accountant III
Chief, Finance S23BG0234section

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NOW, THEREFORE, for and consideration of the foregoing premises, the parties hereto agree as follows:

1. In this **CONTRACT AGREEMENT**, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents shall be attached, deemed to form, and be read and construed as part of this **CONTRACT AGREEMENT**, and shall be interpreted in the following order of priority:
 - a. This Contract Agreement
 - b. Documents forming part of the Contract Agreement:
 - (1) Notice of Award (NOA) with the Contractor's signed "conforme"
 - (2) Contractor's Bid in the Form of Bid, including its Technical and Financial Proposals, as calculated by the Procuring Entity and conformed to by the Contractor through the NOA.
 - (3) Bidding Documents with Bulletins
 - (4) Specifications
 - (5) Drawings
 - (6) Special Conditions of Contract (SCC)
 - (7) General Conditions of Contract (GCC)
 - (8) Performance Security
 - (9) Other Documents
 - (a) Construction Methods
 - (b) Construction Schedule in the form of PERT/CPM Diagram or Precedence Diagram and Bar Chart with S-Curve, or other approved tools of project scheduling, and Cash Flow.
 - (c) Manpower Schedule
 - (d) Equipment Utilization Schedule
 - (e) Construction Safety and Health Program initially approved by the Head of the Procuring Entity
 - (f) Contractor's All Risk Insurance (CARI)
 - (g) Additional Contract Documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.
3. In consideration of the payments to be made by the PROCURING ENTITY to the CONTRACTOR as hereinafter mentioned, the CONTRACTOR hereby covenants with the PROCURING ENTITY to execute and complete the Works comprised in this contract within **Three Hundred Twenty One (321) calendar days** and remedy any defects therein in conformity with the provisions of this **CONTRACT AGREEMENT** in all respects.

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4. In consideration of the execution and completion of the Works by the CONTRACTOR, the PROCURING ENTITY hereby covenants to pay the CONTRACTOR the unit prices in the CONTRACTOR's Calculated Bid, as applied to the actual quantities accomplished as certified by the PROCURING ENTITY under the provisions of this **CONTRACT AGREEMENT**, at the times and in the manner prescribed by this **CONTRACT AGREEMENT**.
5. Slippage of more than thirty (30) days in the original schedule would result in non-payment, cancellation of the contract, blacklisting and entry of a new contractor who will finish the project.

IN WITNESS WHEREOF, the parties hereto set their respective hands on the day, month and year first above written.

PROCURING ENTITY:

Represented by:


ADONIS A. ASIS
District Engineer

CONTRACTOR:

Represented by:

JOHN WINSTON D. UY
General Manager

WITNESSED BY:


ELIGIO T. MATIAS
Engineer III
Chief, Construction Section


JAYSON V. ANTONIO
Accountant III
Chief, Finance Section

OK as to Availability of Funds:

WITNESSES:

CONTRACTOR:

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
BY:


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REPUBLIC OF THE PHILIPPINES)
CITY OF CAUAYAN) S.S.
PROVINCE OF ISABELA)

ACKNOWLEDGMENT

BEFORE ME, a Notary Public for and in the Province of Isabela, personally appeared **ADONIS A. ASIS** in his official capacity as District Engineer of the Department of Public Works and Highways, representing the Republic of the Philippines, with PRC ID No. 0045170 issued on August 16, 1986 at Manila and **JOHN WINSTON D. UY** in his official capacity as General Manager of **JWU CONSTRUCTION AND SUPPLY** with PCAB License No. **48659** with validity period up to **October 29, 2025** known to me and to me known to be the same persons who executed the foregoing CONTRACT AGREEMENT and they acknowledged to me same are their true act and deed for and behalf of the parties they represent.

This instrument consists of four (4) pages including this page on which the acknowledgment is written duly signed by the Contracting Parties and their witnesses on the left margin of the other pages.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal
this _____, Philippines.

Notary Public

Doc. No. _____
Page No. _____
Book No. _____
Series of 2024